

TENTATIVE RULING(S) FOR May 5, 2026

Department S14 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-14) at (909) 521-3495 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2326003

Jazo v. GM

TENTATIVE RULING(S):

This is a lemon law action concerning a 2023 Chevrolet Silverado. On October 25, 2023. The parties settled in May 2024 for \$60,000 plus prejudgment interest for a total settlement of \$71,605.48 which includes repurchase of the subject vehicle. On December 26, 2025, Plaintiff filed his memorandum of costs seeking recovery of \$1,739.98. Defendant filed the instant Motion to Tax Costs. Plaintiff opposes and Defendant replies.

The Court notes that Plaintiff is also seeking attorney's fees which is set for hearing on June 11, 2026.

DISCUSSION

Statement of the Law

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc., §1032(b).) When authorized by contract, statute or law, reasonable attorney's fees are "allowable costs." (Code Civ. Proc., §1033.5 (a)(10)(A), (B), & (C); *Santisas v. Goodwin* (1998) 14 Cal.4th 599, 606.) Costs statutes are to be strictly construed. (*Sequoia Vacuum Systems v. Stransky* (1964) 229 Cal.App.2d 281, 289.) If the items appearing on a costs bill appear to be proper charges, the party seeking to tax costs bears the burden of showing they are not reasonable or necessary. If the items are properly objected to, however, then the party seeking costs bears that burden. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

The mere filing of a motion to tax costs may be a "proper objection" to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. (*Oak Grove School Dist. v. City Title Ins. Co.* (1963) 217 Cal. App. 2d 678, 698-699.) However, "[i]f the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the [party seeking costs] [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party]." (*Id.*, at p. 699; see also *Miller v. Highland Ditch Co.* (1891) 91 Cal. 103, 105-106.)

Unlike the memorandum of costs, a motion to tax need not be verified. Where the objections are based on factual matters, the motion to tax must be supported by declarations under penalty of perjury. (*County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.)

Analysis

There is no dispute that Plaintiff is the prevailing party and therefore entitled to recovery of costs.

Defendant first asks the Court to tax \$31.68 in filing fees for e-filing of noticed of advanced jury fees and the initial trial setting conference statement. Defendant argues it should not be responsible for this payment because the case never went to trial and these expenses did

nothing to advance Plaintiff's case. However, the mere fact that the case did not go to trial does not mean related expenses were not justified because Plaintiff's counsel would not have known the case would settle until later and had to preserve Plaintiff's right to a jury. E-filing of such documents is a necessary and reasonable expense. Thus, the Court allows this claim.

Defendant next asks the Court to strike the \$150 jury fee deposit. Defendant argues jury fees are only recoverable when a trial occurs under *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 245. However, this pinpoint citation does not preclude recovery of the jury deposit in this situation. Again, deposit of the jury fees was reasonable and necessary at the time even though the case ended up settling later. Thus, the Court allows this claim.

Next, Defendant asks the Court to strike \$655.08 in expenses incurred for serving subpoenas on non-party dealership employees for depositions that never occurred. Again, when the deposition notices were served Plaintiff's counsel would have reasonably anticipated the depositions would in fact go forward. These expenses were reasonable advanced and are properly recoverable. Therefore, the Court allows this claim.

Lastly, Defendant challenges \$250 in costs listed under line 15 ("Other") on the memorandum of costs. The motion and opposition both state that the cost is identified as "mediation", but no such reference appears on the memorandum of costs. Instead, the item is entirely without explanation. Nevertheless, in opposition Plaintiff contends the reference to mediation was in error, and the expense was for a court reporter for Plaintiff's deposition. An invoice is attached. (Song Decl., ¶¶7-8; Exh. A.) Although this cost was inadequately explained in the first instance, it is now properly supported and justified. Thus, the Court allows this cost as well and deny the motion to tax in full.